MEASURE "P" - DESERT RECREATION DISTRICT

FULL TEXT OF MEASURE

AN ORDINANCE OF THE PEOPLE OF DESERT RECREATION DISTRICT, CALIFORNIA, ENACTING A SPECIAL PARCEL TAX UPON PROPERTY WITHIN THE DISTRICT TO FUND LOCAL SAFE PARKS AND RECREATION SERVICES

The People of the Desert Recreation District do ordain as follows:

WHEREAS, the Desert Recreation District (District) provides parks, recreation facilities, community programs, and related services throughout its service area covering 1,887 miles across the greater Coachella Valley; and

WHEREAS, The District is responsible for maintaining facilities and programs that serve residents of all ages and abilities and provide opportunities for recreation, community engagement, relief from extreme temperatures, and access to essential community services; and

WHEREAS, the District has placed a priority on preserving opportunities for children to run, play and experience nature to improve their health and well-being, and keep our children and teens off the streets, safe, and out of trouble; and

WHEREAS, the District has identified long-term funding needs associated with aging parks and recreation facilities and the continuation of community services including, repairs to water, gas, and sewer systems at District parks and recreation facilities; removal of asbestos and mold; facility safety improvements; maintenance of cooling centers; services for vulnerable seniors; youth gang and drug prevention programs; and efforts addressing homelessness and its impacts on District facilities and programs; and

WHEREAS, the District has worked hard to balance its budget each year and to maintain services to residents even while rising costs and the aging facilities have impacted the District's budget, creating a structural deficit; and

WHEREAS, without a stable funding source, the District will be forced to make significant cuts to programs our children and seniors depend on, reduce critical park and recreation facilities maintenance, and reduce the community services available to residents; and

WHEREAS, the District's Board of Directors has reviewed all options, and received information about a potential funding measure, with strict accountability requirements, that would provide locally controlled funding to help fund services, programs and maintain aging recreation facilities.

NOW, THEREFORE, BE IT ORDAINED BY THE PEOPLE OF THE DESERT RECREATION DISTRICT, AS FOLLOWS:

SECTION 1. **Authority, Purpose and Intent.** Pursuant to the authority of Section 5789.1 of the California Public Resources Code and Article 3.5 of Chapter 1 of part 1 of Division 1 of Title 5 of the Government Code, commencing with Section 50075, and other applicable law, there is hereby levied and assessed a special parcel tax by the Desert Recreation District for each fiscal year. It is the sole purpose and intent of this ordinance to impose a special parcel tax for the specific purpose of constructing, maintaining and improving safe, clean parks and recreation services for the community, its youth, and senior citizens.

SECTION 2. **Parcel Tax Imposed**.

A. Commencing with Tax Year 2027-2028, an annual special tax shall be levied at the rate of 5 cents ($0.05) per square foot of structural improvements on all Taxable Improved Parcels, except as exempted herein. The District may rely on the Riverside County Assessor ("Assessor") records for such information or may verify the square footage independently.

   (1) For the purpose of this subsection:

      (a) "Taxable Improved Parcels" means all parcels with an Improvement Value greater than $50,000 per the Assessor.

      (b) For purposes of the special tax calculation, all Taxable Improved Parcels shall be subject to a 500 building square foot minimum and a 250,000 square foot maximum of structural improvements.

B. The following parcels shall be subject to exemption from the special parcel tax specified in subsection (A) of this Section:

   (1) All parcels exempt from ad valorem property taxes to the same extent partially or fully exempt as determined by the Assessor, including, but not limited to, government parcels and parcels owned by non-profit organizations satisfying the requirements of Revenue and Taxation Code section 214.

   (2) Upon application, Low-Income Senior-Owned Parcels.

      (a) For the purpose of this subsection, "Low-Income Senior-Owned Parcels" means parcels within the District that are owned and occupied as a residence by individuals over the age of sixty-five (65) who are the head of the household, with a household income that does not exceed the Very Low-Income limit for Riverside-San Bernardino-Ontario, CA MSA, as determined annually by the U.S. Department of Housing and Urban Development.

      (b) The exemption for Low-Income Senior-Owned Parcels shall be implemented in accordance with procedures and guidelines developed and adopted by the Board of Directors of the District and updated from time to time.

C. The Board of Directors of the District shall establish and administer an appeals process to address and correct potential inequities in the levy of the special tax. Parcel owners or any other person or entity subject to the special tax may seek review of the amount of their tax on the following grounds:

(1) Mathematical error in the calculation of the tax; or

(2) Significant discrepancy between the assessed and the actual square footage of improvements.

D. All laws and procedures regarding exemptions, due dates, installment payments, corrections, cancellations, refunds, late payments, penalties, liens and collections for ad valorem property taxes shall be applicable to the collection of the special tax. The secured roll tax bills shall be the only notices required for the levying of the special tax. The District and the County shall cause the special tax to be placed on the appropriate County tax roll for the initial Tax Year 2027-2028, and for subsequent tax years. The Treasurer and Tax Collector of the County shall collect the special tax on the tax roll at the same time and in the same manner, and subject to the same penalties and interest as the ad valorem property taxes fixed and collected by or on behalf of the County.

SECTION 3. **Special Account.** The proceeds of the Parcel Taxes shall be deposited in a special account, created and maintained by the District, and used only for the specific purpose identified in Section 1 of this Ordinance.

SECTION 4. **Accountability Measures.** The Finance Director of the District shall cause a report (the "Report") to be prepared by an independent auditor and to be filed with the Board of Directors no later than August 30 of each year. The Report shall state: (a) the amount of Parcel Taxes collected and expended in such year; and (b) the status of any projects or description of any programs and services funded from proceeds of the Parcel Taxes. The Report may relate to the calendar year, fiscal year, or other appropriate annual period, as the chief fiscal officer of the District shall determine, and may be incorporated into or filed with the annual budget, audit, or other appropriate routine report to the Board of Directors. For the purposes of this Ordinance, "fiscal year" means the District's fiscal year which begins on July 1 and ends on June 30 of each year.

SECTION 5. **Appropriations Limit.** Pursuant to California Constitution Article XIIIB §4, the appropriations limit for the District is hereby increased by the maximum projected aggregate revenues to be collected from the Parcel Taxes authorized by this levy in each of the years covered by this Ordinance.

SECTION 6. **Effective Date.** Pursuant to California Constitution Article XIIIC §(2)(d) and California Elections Code section 9320, if two thirds of the qualified voters voting in the election on this Ordinance vote in favor of its adoption, this Ordinance shall be deemed valid and binding and shall be considered as adopted upon the date that the vote is declared by the Board of Directors, and shall go into effect ten (10) days after that date.

SECTION 7. **Duration of Special Parcel Tax.** The authority to levy the special parcel tax shall remain in effect unless a later ordinance is adopted and approved by two-thirds of the voters of District voting thereon that either repeals the special parcel tax or establishes a date that the authority to levy the special parcel tax shall terminate.

SECTION 8. **Severability.** If for any reason a court with jurisdiction finds any portion of this ordinance to be invalid or finds the special tax to be inapplicable to any particular parcel, then the balance of this ordinance and the application of the special tax to the remaining parcels shall not be affected.

SECTION 9. **Certification.** Following the District Clerk certification that the voters of the District have approved this Ordinance, the President shall sign this Ordinance and the District Clerk shall cause the same to be entered in the book of original ordinances of said District.

SECTION 10. **Attestation.** The Chair of the Board of Directors of the District is hereby authorized to attest to the adoption of this Ordinance by the voters of the District by signing where indicated below.

I hereby certify that the foregoing Ordinance was PASSED, APPROVED AND ADOPTED by the people of the Desert Recreation District voting on the 3rd day of November, 2026.

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Giovanna Healy, President

Desert Recreation District

ATTEST:

_____

Caroline Patton, District Clerk

Desert Recreation District

IMPARTIAL ANALYSIS OF MEASURE "P"

Safe Parks and Youth/Senior Recreation

The purpose of Measure P is to enable voters to authorize or reject the Desert Recreation District ("District") the establishment of a special parcel tax upon properties within the District. The Board of Directors of the District, by adopting Resolution No. 26-25 ("Resolution"), elected to call an election to place this Measure on the ballot.

Measure P would establish an annual special parcel tax to be levied at the rate of 5 cents ($0.05) per square foot of structural improvements on all parcels with an improvement value greater than $50,000 per the Riverside County Assessor. Parcels subject to exemption are low-income senior-owned parcels and parcels currently exempt from ad valorem property taxes as determined by the Riverside County Assessor. Money raised by the special parcel tax will be expended on maintaining safe drinking water, address homelessness, repair aging gas/sewer lines, remove asbestos/mold at parks/recreation facilities, maintain cooling centers, services for vulnerable seniors, and youth gang/drug prevention programs.

Measure P provides for the Finance Director of the District to cause a report to be prepared by an independent auditor to be filed with the Board of Directors of the District no later than August 30th of each year. The report shall state: (a) the amount of parcel taxes collected and expended in such year; and (b) the status of any projects or description of any programs and services funded from proceeds of the parcel taxes.

For this Measure to be approved, two-thirds (2/3) of qualified voters within the District who vote on the Measure must vote yes.

A "YES" vote on Measure "P" is a vote to authorize the District to establish a special parcel tax to provide financing of park projects.

A "NO" VOTE on Measure "P" is a vote to reject the District from establishing a special parcel tax to provide financing of park projects.

By: Minh C. Tran
Riverside County Counsel

ARGUMENT IN FAVOR OF MEASURE "P"

Vote YES on Measure P to protect parks and recreation areas in the Coachella Valley!

Every day, Desert Recreation District parks, pools, recreation centers, and community spaces provide safe places for children to play, families to gather, seniors to stay active, and residents to improve their health and well-being.

However, decades of use have left a mark on our recreation facilities. Bathrooms are crumbling, pipes leak, and outdated electrical systems can't keep up. As our region continues to experience hotter summers, recreation centers also provide spaces where seniors can stay active and find relief during periods of extreme heat.

Without an additional source of funding, Desert Recreation District will be forced to make significant cuts to programs our children and seniors rely on.

Measure P funds basic repairs so our parks and recreation facilities don't fall into disrepair and become more expensive to fix. Well-maintained community centers and parks help keep our neighborhoods desirable and our home values strong.

Measure P maintains safe, youth and sports programs that keep them active, engaged, off the streets and out of trouble.

Measure P: Accountable and Protects Local Control

- Every dime stays here for our parks, not one cent can be taken by the State
- Annual audits and public financial disclosures would ensure proper use of funds
- Exemptions are available for income-sensitive senior citizens

Measure P: Protects Our Communities

- Update cooling centers to help protect seniors during times of extreme heat
- Address homelessness in recreation areas and keep parks safe and clean
- Maintain safe drinking water at all parks and facilities
- Repair aging park bathrooms, gas, sewer and electrical systems
- Maintain clean children's play areas and support youth prevention programs

Vote **YES on Measure P.** Protect local parks, recreation programs and our quality of life.

By: Richard E. Gauthier
Arnold Iniguez Jr
David Torres
Yvonne Garcia
Carlos Rodriguez

NO ARGUMENT FILED AGAINST MEASURE "P"